3141

Third Executive Order

UNITED STATES SHEEP EXPERIMENT STATION IDAHO — Public Lands

It appearing that certain changes should be made in the boundaries of the area withdrawn by Executive Order dated October 30, 1915, No. 2268, as modified by Executive Order No. 2491, dated November 21, 1916, for use by the Department of Agriculture of the United States as a sheep-breeding and grazing experimental station, it is hereby ordered, under authority of the Act of Congress approved June 25, 1910 (36 Stat., 847), as amended by the Act approved August 24, 1912 (37 Stat., 497), that the following described lands in Idaho be, and the same are hereby withdrawn from settlement, location, sale or entry and reserved as an addition to such station, subject to the provisions, limitations and conditions of said acts:

See No. 3165

In T. 10 N., R. 36 E., NW¼ and W½ SE¼ Sec. 2, E½, NE¼ NW¼ and SE¼ SW¼ Sec. 3;

Boise Base and Meridian.

And it is further ordered that the order of withdrawal of November 21, 1916, be revoked in so far as it affects the areas hereinafter described:

In T. 11 N., R. 37 E., SW¼ NW¼ and W½ SW¼ Sec. 12; W½ NE¼, NW¼, N½ SW¼, SW¼ SW¼, NW¼ SE¼ Sec. 13, NE¼ NE¼ Sec. 23, N½ NW¼ Sec. 24;

Boise Base and Meridian.

It appearing proper and necessary, in the interest of equal opportunity and good administration, that all of the lands last above described subject to disposition should be restored to homestead entry in advance of settlement or other forms of disposition, it is hereby ordered, under authority of the Act of September 30, 1913 (38 Stat., 113), that the public lands in the areas last described, subject to valid rights, shall be opened to entry only under the provisions of the homestead laws requiring residence at and after, but not before 9 o'clock a. m., standard time, August 27, 1919, and to settlement and other disposition under any public land law applicable thereto at and after, but not before, 9 o'clock a. m., standard time, September 3, 1919. Prospective applicants may, during the period of twenty days preceding the date on which the lands shall become subject to entry, selection, or location of the form desired under the provisions of this order, execute their applications in the manner provided by law and present the same, accompanied by the required payments, to the United States Land Office at Blackfoot, Idaho, in person, by mail, or otherwise, and all applications so filed, together with such as may be submitted at the hour fixed, shall be treated as though simultaneously filed and shall be disposed of in the manner prescribed by existing regulations. Under such regulations, conflicts of equal rights will be determined by a drawing.

Warning is hereby given that no settlement initiated prior to seven days after the date for homestead entry above named will be recognized, but all persons who go upon any of the lands to be restored hereunder and perform any act of settlement thereon prior to 9 o'clock a. m., standard time, September 3, 1919, or who are on or are occupying any part of said lands at such hour, except those having valid subsisting settlement rights initiated prior to withdrawal from settlement and since maintained, will be considered and dealt with as trespassers and will gain no rights whatever under such unlawful settlement or occupancy; Provided, however, that nothing herein contained shall

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prevent persons from going upon and over the lands to be restored to examine them with a view to thereafter appropriating them in accordance herewith. Persons having prior settlement rights, as above defined, will be allowed to make entry in accordance with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
6 August, 1919.

[No. 3141]